

ORIGINAL

CIVIL RIGHTS COMPLAINT
42 U.S.C. § 1983

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

AMON, CH.J.

John S. Campos 1520926
Full name of plaintiff/prisoner ID#

CV 15 4667
ORENSTEIN, M.J.

Plaintiff,

JURY DEMAND

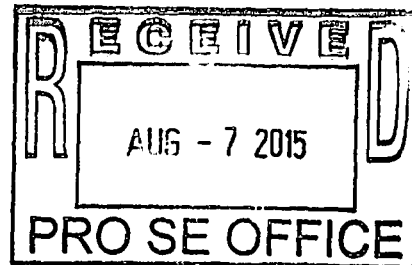
YES ☒ NO ☐

-against-

paul A. Capofari michael
sampers michael harding
matthew dilgen mr terranova
Enter full names of defendants

[Make sure those listed above are
identical to those listed in Part III.]

Defendants.



I. Previous Lawsuits:

- A. Have you begun other lawsuits in state or federal court dealing with the same facts involved in this action or otherwise relating to your imprisonment? Yes (☒) No ()
- B. If your answer to A is yes, describe each lawsuit in the space below (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same outline.)

1. Parties to this previous lawsuit:

Plaintiffs: John S. Campos

Defendants: matthew zontag Stephen J. Rooney,
Edward Patten Allen Meyer Kirsten Krueger, L Rienzi
Tuesday Muller Mondl, Daniel M. Donovan Jr.

2. Court (if federal court, name the district;
if state court, name the county)

United District Court eastern district of New York
(Brooklyn)

3. Docket Number: 1:15-cv-02862-CBA-JO

4. Name of the Judge to whom case was assigned: ms Carol Bagley Amon

5. Disposition: (for example: Was the case dismissed? Was it appealed? Is it still pending?)
still pending

6. Approximate date of filing lawsuit: may 11, 2015

7. Approximate date of disposition: _____

II. Place of Present Confinement: Greene Correctional Facility

A. Is there a prisoner grievance procedure in this institution? Yes (☒) No ()

B. Did you present the facts relating to your complaint in the prisoner grievance procedure? Yes () No (☒)

C. If your answer is YES,

1. What steps did you take? none

2. What was the result? none

D. If your answer is NO, explain why not I felt no reason to file a grievance

E. If there is no prison grievance procedure in the institution, did you complain to prison authorities? Yes () No (☒)

F. If your answer is YES,

1. What steps did you take? none

2. What was the result? none

III. Parties:

(In item A below, place your name in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff John S Campos, #1580926

Address P.O. Box 975 Coxsackie, New York 12051-0975

(In item B below, place the full name and address of each defendant)

B. List all defendants' names and the addresses at which each defendant may be served. Plaintiff must provide the address for each defendant named.

Defendant No. 1

paul A-Capofari
260 Christopher lane, suite 201
Staten Island, New York 10314

Defendant No. 2

michael Gompers
60 Bay Street Staten Island
new York 10301

Defendant No. 3

michael Harding
60 Bay Street Staten Island
new York 10301

Defendant No. 4

matthew Dilgen # 7896
970 Richmond Avenue apt 121
Staten Island New York

Defendant No. 5

mr Terranova
970 Richmond Avenue apt 121
Staten Island new York

[Make sure that the defendants listed above are identical to those listed in the caption on page 1].

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND:CRIMINAL TERM

THE PEOPLE OF THE STATE OF NEW YORK

AGAINST JOHN CAMPOS,DEFENDANT.

INDICTMENT NO:296/2013

FILED:10/28/13

FILE.:13-1015

DOCKET NO.201R1008542

THIS CASE IS TAINTED AND A SHAM:BECAUSE THE CERTIFICATE OF
INDICTMENT INDICATES THE WAY THE PROSECUTION WENT ABOUT
THIS CASE.DUE TO THE FACT OF INEFFECTIVE ASSISTANCE OF
COUNCEL AND PROSECUTORIAL MISCONDUCT CONTRADICTS ITS SELF,
SEE EXHIBITS A,B,C,THE RECORD REVEALS THAT THE DISTRICT
ATTORNEY CHARGED WITH PROSECUTING THIS CASE,COMPLETELY
FABRICATED ATLEAST A PORTION OF THE INDICTMENT AND INFORMATION
PURPOSELY IN AN EFFORT TO ENSURE A CONVICTION.MY 6TH
AMENDMENT HAS BEEN VIOLATED DUE TO DEFENDANT COUNCEL LACK OF
MISREPRESENTATION AND PERFORMANCE TO INVESTIGATE THE
FABRICATION OF BOTH FACTUAL AND LEGAL.ON APRIL 29,2014 THE
INSTANT COURT HELD A HUNTLEY HEARING ON THE ABOVE REFERENCED
MATTER.THE HEARING INVOLVED A SINGLE WITNESS POLICE OFFICER
MATTHEW DILGEN,WHO TESTIFIED ABOUT THE DETAILS OF THE ALLEGED
STATEMENT MADE BY THE DEFENDANT FROM HIS HOSPITAL BED,MORE
THAN 12 HOURS AFTER HIS ARREST ON 10/10/13 POLICE OFFICER
DILGEN ARRESTED THE DEFENDANT AT 10:43PM FOR A VIOLATION
OF ORDER OF PROTECTION.HE THEN LEFT THE DEFENDANT IN THE
CUSTODY OF OTHER POLICE OFFICERS AND THE NEXT MORNING TO
"DRAW UP" THE COMPLAINT AGAINST THE DEFENDANT

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THAT PROCESS WAS COMPLETED, POLICE OFFICER WAS ORDERED TO OBTAIN A STATEMENT FROM THE DEFENDANT. THE DEFENDANT HAD APPARENTLY HAD GONE TO THE HOSPITAL, BECAUSE HE WAS INTOXICATED AND HAD SUFFERED A SUBSTANTIAL HEAD INJURY. OFFICER DILGEN COULD NOT SAY WHO HAD BEEN WITH THE DEFENDANT, WHAT MEDICAL TREATMENT HE HAD RECEIVED, OR WHETHER ANY THREATS OR PROMISES HAD BEEN MADE TO THE DEFENDANT IN THE TWELVE (12) HOURS SINCE THE OFFICER HAD SEEN THE DEFENDANT LAST. THE OFFICER CLAIMS TO HAVE MIRANDIZED THE DEFENDANT, AT THE HOSPITAL THE NEXT MORNING, ALTHOUGH THE MIRANDA CARD BORE NO "IDENTIFYING" MARKERS AND HAD NOT BEEN WRITTEN UPON OR SIGNED BY THE DEFENDANT. MOREOVER, HIS GRAND JURY TESTIMONY CONTRADICTED THIS CLAIM, INDICATING THAT HE MIRANDIZED THE DEFENDANT TWELVE 12 HOURS BEFORE HIS ALLEGED STATEMENT, AT THE TIME OF HIS ARREST. THE OFFICER CLAIMS AFTER MIRANDA THE DEFENDANT STATED "I WENT THERE FOR A BOOTY CALL AND WANT TO KNOW WHERE MY PROPERTY IS," I.D. THE PROBLEM WITH THIS CLAIM IS THAT THE OFFICER CLEARLY COMPLETED PAPER WORK AFTER THIS ALLEGED STATEMENT THAT INDICATED THAT NO STATEMENT OF ANY KIND HAD BEEN MADE. THIS CLAIM HAD BEEN FILED WITH THE COURT. CONSEQUENTLY WITHOUT THE PRESENCE OF COUNSEL THE DEFENDANT COULD NOT WAIVED HIS RIGHT TO COUNSEL. THE ASSISTANT DISTRICT ATTORNEY AND GRAND JURY VOTED TO INDICT THE DEFENDANT ON 10/22/13. THE DEFENDANT WAS APPOINTED A ATTORNEY ON 10/28/13. THE DEFENDANT WAS ARRAIGNED AND INDICTED ON 10/30/13. THE PROSECUTION MUST FILE AN INDICTMENT OR A WRITTEN CERTIFICATION THAT AN INDICTMENT HAD BEEN VOTED BY THE GRAND JURY WITHIN 120 TO 144 HOURS OF THE TIME OF ARREST. BEAWARE THAT TIME SPENT IN CUSTODY COUNTS

TOWARDS THESE LIMITS ARE HOURS NOT DAYS, THEREFORE TIME
RUNS OUT DURING THE LAST COURT SESSION THAT PRECEDES
EXHAUSTION OF THE HOURLY LIMIT. FAILURE TO MEET THIS
DEADLINE REQUIRES THAT THE CLIENT BE RELEASED ON HIS
OWN RECOGNIZANCE. THE "TRUE BILL" VOTED BY THE GRAND JURY
IS AN INDICTMENT THAT "MUST BE FILED PROMPTLY. THE EFFECT
OF NOT FILING A "TRUE BILL" CREATES AN EGREGIOUS DEFECT
THAT IS NOT CURABLE. THE PEOPLE IN ORDER TO AVOID THE RELEASE
OF A DEFENDANT BECAUSE OF THE FAILURE TO ACT ON A FELONY
COMPLAINT WITHIN THE PRESCRIBED TIME LIMIT SHOULD NOT
RESORT TO SHORTCUTS THAT BYPASS PROPER PROCEDURES BUT SHOULD
NOT SEEK TO HAVE THE DEFENDANT RETAINED UPON A SHOWING OF
GOOD CAUSE THAT "SOME COMPELLING FACT OR CIRCUMSTANCE
PRECLUDED THE DISPOSITION OF THE FELONY COMPLAINT WITHIN
THE PRESCRIBED PERIOD" CPL 180.80 FOR DEFENDANTS RELEASE
FROM JAIL, IF THERE WAS NEITHER GRAND JURY ACTION NOR
PRELIMINARY HEARING EXPIRED. PEOPLE MAY NOT REDUCE FELONY
CHARGES TO MISDEMEANOR CHARGES WHEN THEY HAVE NO INTENTION
OF ALLOWING DEFENDANT TO TAKE PLEA OR GO TO TRIAL ON
MISDEMEANOR CHARGES, AND ARE DOING SO ONLY TO KEEP THE
DEFENDANT IN JAIL WHILE THEY EXTEND TIME TO GET INDICTMENT
THUS IF THE ARREST WAS VALID, THE PEOPLE SHOULD NOT NEED
MUCH TIME TO PREPARE AN ADEQUATE CASE. ITS THE PROSECUTIONS
BURDEN THAT THEY DID NOT MEET THERE 6 MONTHS DEADLINE.
THE PEOPLES TIME HAS EXPIRED TO TRY THE DEFENDANT. MORE
THAN 12 MONTHS ELAPSED BETWEEN THE COMMENCEMENT OF THE
ACTION THE DATE THAT THE PEOPLE ANNOUNCED THEIR READINESS
FOR TRIAL ON THE DATE OF 7/14/14.

EVIDENTLY THE RECORD REVEALS THAT THE PROSECUTION IS LACKING SUFFICIENT EVIDENCE, WITH THE SWORN GRAND JURY TESTIMONY OF POLICE OFFICER DILGEN AND COMPLAINING WITNESS STATEMENTS ARE SO RIFE WITH INCONSISTENCIES AND CREDIBILITY PROBLEMS. ITS THE PROSECUTIONS BURDEN THAT THE "TRUE BILL" OF INDICTMENT HAS DEFECTS WHICH ARE 2 COUNTS OF AGGRAVATED CRIMINAL CONTEMPT AND 2 COUNTS OF CRIMINAL CONTEMPT 1ST DEGREE AND 2 COUNTS OF AGGRAVATED FAMILY OFFENSES AND THE DATE OF THESE ALLEGED OFFENSES 10/10/13. THE DEFENDANT IS BEING CHARGED WITH AGGRAVATED CRIMINAL CONTEMPT 1ST DEGREE D FELONY AND 3RD DEGREE ASSAULT IS A MISDEMEANOR. BY COURT ORDER OF PROTECTION IN VIOLATION OF CJS CPL PENAL 215.51 (B)(V10 WAS NOT DUPLICITIOUS BECAUSE 1ST DEGREE CRIMINAL CONTEMPT DOES NOT CONSTITUTE "CONTINUOUS CRIME". AND TO REMIND THE PEOPLE OF THE COURT THAT THE ASSISTANT DISTRICT ATTORNEY IS A SWORN ATTORNEY DULY LICENSED TO PRACTICE LAW IN THE STATE OF NEW YORK, AFFIRM UNDER PENALTY OF PERJURY TO UPHOLD THE LAW, BUT CHOOSES TO TO RESORT TO SHORTCUTS THAT BYPASS PROPER PROCEDURES OF THE UNITED STATES CONSTITUTION LAW TO GET A CONVICTION. THE PEOPLE CHOOSES TO DEPRIVE THE DEFENDANT OF A FAIR TRIAL AND A FELONY HEARING PRIOR TO INDICTMENT MAY SEEK CRIMINAL CONTEMPT CITATION AGAINST THE ASSISTANT DISTRICT ATTORNEY IN CHARGE FOR WILLFULLY FRUSTRATING COURTS EFFORTS TO ASSURE A DEFENDANTS RIGHT TO SUCH HEARING. THE STATEMENTS AND FACTS IN THIS CASE WOULD DETERMINE THAT THE PROSECUTORIAL MISCONDUCT IS SO EGREGIOUS AND IN THE FURTHERANCE OF JUSTICE THIS CASE SHOULD BE DISMISSED, AND HOW CAN THIS LEGAL MATTER BE RESOLVED TODAY?

ORI	Serial # (NYC)	Incident #	Product or TV	Alleg # (NYC)	Complaint #
	3563	705000156		500	002567

**Page 2 of the NYS Domestic Incident Report:
STATEMENT OF ALLEGATIONS / SUPPORTING DEPOSITION**

Suspect Name (Last, First, M.I.)

I, Sharay Regan (victim/deponent name), state that on 10/10/13 (date) at 10:50
Yo. (nombre de victima/deponente), declaro que en tal fecha / / en

(location of incident), in the County/City/Town/Village of _____, of the state of New York, the following did occur
(donde el incidente ocurrió), el condado/ciudad/aldea/pueblo de _____, del estado de Nueva York, lo siguiente ocurrió:

John Campos was standing in my hall way, trying to
talk to me. I was in my room. I try to be nice
due to fear he hurt me in talk to him. As I
did so John Campos punched me closed fist
on my right side of face, stating he's gonna
kill me. Then he took his fingers in pulled
me on my left face in order protect myself
I hit him on head then ran out house for
help.

(Use additional pages as needed)

False Statements made herein are punishable as a Class A Misdemeanor, pursuant to section 210.45 of the Penal Law.
Declaraciones falsas hechas aqui son castigables como una clase de delito menor, de acuerdo con la seccion 210.45 de la ley penal.

Sharay Regan
Victim/Deponent Signature
Firma de victima/deponente

10/10/13
Date
Fecha

Interpreter

Date

[Signature]
Witness or Officer

10/10/13
Date

Note:
Whether or not this form is signed, this DIR form will be filed with law enforcement.
Note:
Si esta forma esta firmada, o no, esta DIR forma sera registrada con la policia.

PEOPLE'S RESPONSE TO DEFENDANT'S
MOTION TO SUPPRESS STATEMENT TESTIMONY

The defendant moves to suppress any statement evidence obtained as a result of the defendant's arrest based on the argument that the defendant's arrest was made without probable cause. Defendant also alleges that the defendant made such statements involuntarily, while in custody and as a result of interrogation. The People submit that the arrest was made with probable cause. Upon information and belief, the complainant observed the defendant outside of her home. The defendant wanted to speak with the complainant and she insisted he leave. When the complainant opened her door, the defendant struck her in the face, tried to restrain her in a choke hold, bit her on the face and poked her in the eye with his finger. The complainant was able to break free from defendant's grip and flee the apartment. She flagged down a stranger who called 911 for her. Within minutes of the 911 call, the complaint flagged down the arresting officer who was responding to the radio run. The arresting officer was on a foot post approximately two blocks away when he first heard the radio call. Within minutes of that radio call he was met by the complainant who told him that the defendant had assaulted her and that he might still be at her apartment. They walked together back to 113 Faber Street from the corner of Grove Street and Fort Richmond Avenue. Because the complainant fled her home without her keys, the arresting officer rang the bell and a man answered the door. The complainant was standing a few feet away and indicated that the person answering the door was in fact the person that assaulted her. The defendant was placed under arrest and transported to Richmond University Medical Center because of a bleeding laceration to his head caused by the complaint when she struck him with an unknown object during the assault. The defendant then stated to the arresting officer that he knew he was in trouble and that he knew he

IV. Statement of Claim:

(State briefly and concisely, the facts of your case. Include the date(s) of the event(s) alleged as well as the location where the events occurred. Include the names of each defendant and state how each person named was involved in the event you are claiming violated your rights. You need not give any legal arguments or cite to cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. You may use additional 8 1/2 by 11 sheets of paper as necessary.)

on the date of 7-25-13 michael gompers coerced me to plead guilty to Criminal Contempt 1st degree p.c. 215.51 B5 E Felony and (5) years probation and was negligent in violating my 180.80 day and waived my Grand Jury rights on the date of 10-29-14 police officer mr terranova gave false testimony on the date of 10-29-14 police officer mr matthew gave false testimony michael harding was negligent in violating my Grand Jury rights and violated my 180.80 day Attorney mr paul A. Capofari was in contact with the prosecution on the date of November 7, 2014 and part of an illegal trial michael harding was appointed to me on 10-28-13 until 1-21-14

IV.A If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

Falsifying evidence, malicious prosecution, Conspiracy, coercion, police misconduct, aiding abetting, violated my constitutional and due process rights, ineffective assistance of counsel.

V. Relief:

State what relief you are seeking if you prevail on your complaint.

I John S Campos the plaintiff prays For judgement in my favor and damages in my favor against all defendants in an amount sufficient to compensate me for the pain and mental anguish suffered by them due to the deliberate indifference and intentional misconduct of defendants, but in no event less than \$750,000 punitive damages, compensatory damages of \$750,000 and Future damages of \$750,000 and I would like to sue the defendants in their individual capacity Seven hundred Fifty thousand dollars and such additional relief as the court may deem just and proper. Injunctive Relief

I declare under penalty of perjury that on 7th of July 2015 I delivered this
(Date)
complaint to prison authorities to be mailed to the United States District Court for the Eastern
District of New York.

Signed this 7th day of July, 2015. I declare under penalty of
perjury that the foregoing is true and correct.

John S Campos
Signature of Plaintiff

Greene Correctional Facility
Name of Prison Facility

P.O. box 975

Coxsackie New York

12051-0975
Address

15R0926
Prisoner ID#